Compliance in a clinical study: Ethics application, insurances and study registration

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FER – Research support and external relations

GO
Grants Office

CDO
Compliance & Data Office

EEO
External Engagement Office

International Relations Office

Faculty Office Research

Development Office

CDO - Compliance & Data Office

Support related to:

- Research documentation
- Data- and information management
- Laws, regulations and agreements for external financed projects – focus US and EU
- Clinical studies, ethics and management of sensitive personal data
- System: ELN, DMPOnline, RedCap, Prisma and iLab
- Export control
- KI Foundations & donations

Coordinate:

- RDO - Research Data Office
- DDLS Data Science Node within Precision medicine & Diagnostics

The ethics application

When is ethics approval needed?

- For studies that:
  - → process sensitive personal data (=health).
  - → involves a physical intervention, both living and deceased.
  - → is done by using a method that aims to affect a person physically or psychologically, or involves a risk to hurt the research subject.
  - → is performed on biological material from living or deceased humans and is traceable.
- Also applies if samples/data are collected outside Sweden, but will be analysed/used for research in Sweden.
- Only needed if the data/samples are pseudonymised (coded).
  - → Pseudonymised data = code key exist somewhere in the world.

Research principal (forskningshuvudman)

- Research principal (RP) → organisation where the research is carried out, for example a university, region or private company.
  - → Research → data collection, conduct analyses, process data, storing data.
- A research project can be carried out by one or more research principals, all need to be stated in the application.
  - → One is the applying RP (sökande huvudman) and the others are participating RP (medverkande huvudmän).

- Guidance for selecting the Applying Research Principal in ethics applications for research involving collaborations between Karolinska Institutet and healthcare providers in Region Stockholm

Why is it important to be as research principal?

- If the organisation is not listed as the principal in the ethics, you do not have a legal basis per GDPR to process the data collected within the study.
  - If no legal basis, the organisation is committing a violation of the law.
- In order to be able to send data within/outside the EU/EEA, it must be stated in the ethics, otherwise you do not have a legal basis to send the data.
- If the research subjects have <u>not</u> consented to their data being sent to others within/outside the EU/EEA, the data may not be sent (EPM decides).
- When agreements are to be written (collaboration agreements, data agreements), ethics must be in place, otherwise an amendment application must be made before the collaboration can continue.
- Clarification: Requirements for KI to be listed as research principal

Common mistakes / missunderstandings

- **It costs more to have several research principals**
  - → No, not if the study participants only have direct contact with one of the research principals
- **If I am employed at both the hospital and university, it is enough that the hospital is included in the ethics as research principal**
  - → No, the position has no significance, it is within which organization the research is conducted that determines
- **The doctoral student is employed at the hospital**
  - → But as a PhD student at KI, research is (also) carried out within KI's organization

Common mistakes / missunderstandings

- **Human samples / sensitive personal data collected outside Sweden already have local ethics approval from that country**
  - → This is a basic requirement, but if samples/data are used for research in Sweden, Swedish ethics approval is also required
- **That data should be sent to other parties within/outside the EU/EEA**
  - → But it is not mentioned in the application and/or research subject information and consent form

Insurances in clinical studies / trials

Insurances in Clinical studies at KI

At KI

- **Personal injury protection:** Voluntary subjects who participate in a study at KI are covered by a personal injury protection that covers direct travel between the home and KI, as well as the stay in KI's area.
- **Patient injury insurance:** If KI staff with valid medical or nursing ID perform e.g. biopsy or blood test on a subject.
- **Pharmaceutical insurance:** For drug trials whose medication is not covered, for example when KI produces the investigational drugs used in the trial.

At hospital

- **Patient insurance:** Usually applies when subjects receive care/treatment at the hospital.

Insurances in clinical trials at KI

For drug trials or Medical Device (MDR) / in-vitro (IVDR) trials:

When KI is the sponsor, KI can **NOT** sign any insurances that covers organisations or patients abroad.

- This is because KI is a government organisation and we are not allowed to sign insurances abroad.

Solution:

- **Drug trial:** Assign a co-sponsor in the other country or the Region that can sign insurances
- **MDR/IVDR trial:** 1) Have the Region as a sponsor, or 2) have an organisation in that country who can sign insurances.

Clinical study registration and reporting

Definition of a clinical study

- ICMJE (International Committee of Medical Journal Editors) and WHO define a clinical study:

*”**Any research study that prospectively assigns human participants or groups of humans to one or more health-related interventions to evaluate the effects on health outcomes." Health-related interventions include any intervention used to modify a biomedical or health-related outcome** (for example, drugs, surgical procedures, devices, behavioral treatments, dietary interventions, and process-of-care changes).”*

https://www.icmje.org/about-icmje/faqs/clinical-trials-registration/

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Why should you register your study and report results?

Register in a clinical trial registry = In advance, fill in the purpose in advance, primary/secondary outcomes to be investigated, inclusion criteria, statistical methods to be used, etc.

- Requirements and guidelines set by WHO and the Declaration of Helsinki.
- Increased transparency – Researchers and the public should be able to follow what the research leads to.
- Many scientific journals have study registration as a requirement for publication.

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Which type of studies should be registered?

Intervention study	Yes
Observational study	Not required, but recommended
Pilot study	Yes, if it meets the requirements of the definition
Feasibility study	Yes, if it meets the requirements of the definition
Qualitative study	No
Funding from Swedish Research Council (Vetenskapsrådet)	Wider definition of a clinical study: ”*Intervention- and observational studies, including some register-based studies*”. Read more: https://www.vr.se/english/applying-for-funding/requirements-terms-and-conditions/registering-your-clinical-study.html

If you are unsure, register anyway or contact the journal.

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Where can I register my study?

ClinicalTrials.gov (USA)

- Intervention, observation, MDR/IVDR
- KI has organisations account and give support

ISRCTN (UK)

- Intervention, observation, MDR/IVDR
- Costs 250 GBP + tax
- KI does not give support

CTIS (Clinical Trials Information System)

- Only pharmaceutical trials
- KI has organisations account and give support

OSF

- Does **NOT** fulfill WHO's Registry Criteria
- Only studies that are note clinical studies (according to WHO and ICMJE)
- KI does not give support

These registries meet WHO's Registry Criteria, with requirements for content, quality and accessibility:

Primary registries: https://www.who.int/clinical-trials-registry-platform/network/primary-registries

Data providers: https://www.who.int/clinical-trials-registry-platform/network/data-providers

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More info and contacts at KI

Ethics application and compliance:

- https://staff.ki.se/research-support/legal-issues-compliance-ethics/ethics-application-and-compliance-in-human-research

Insurances:

- https://staff.ki.se/research-support/clinical-research/insurance-for-research-subjects

Clinical study registration and reporting

- https://staff.ki.se/clinical-study-registration-and-reporting-at-ki

Contact:
compliance@ki.se

Process for data agreements

- https://staff.ki.se/research-support/research-data-management/process-for-drawing-up-agreements-for-the-transfer-of-personal-data

Contact:
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